

SOLVED PRACTICE WORKBOOK

Emergency Provisions - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Emergency Provisions - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original hard MCQ set - balanced deterministic non-patterned placement

OM1. Emergency grounds

Which is a current Article 352 ground?

A. Armed rebellion B. Internal disturbance C. Financial instability D. Failure of State machinery

Answer: A.

The 44th Amendment replaced internal disturbance with armed rebellion.

OM2. Imminent danger

A National Emergency:

A. cannot apply to part of India B. may be proclaimed before occurrence where imminent danger exists C. requires completed invasion D. needs Governor consent

Answer: B.

Article 352 expressly covers imminent danger.

OM3. Cabinet advice

The President may proclaim National Emergency only after:

A. Supreme Court approval B. PM oral advice C. written Union Cabinet decision communicated D. Rajya Sabha request

Answer: C.

This is a post-1975 44th Amendment safeguard.

OM4. Approval majority

National Emergency approval requires:

A. State ratification B. two-thirds total membership C. simple majority D. majority of total membership plus two-thirds present and voting

Answer: D.

The special majority applies to approval and six-month continuation.

OM5. Approval window

Both Houses must approve Article 352 within:

A. one month B. 14 days C. six months D. two months

Answer: A.

Pre-44th it was two months; now one.

OM6. Renewal

Once approved, National Emergency continues:

A. one year maximum B. six months per special-majority renewal C. until Supreme Court review D. indefinitely without vote

Answer: B.

There is no maximum if valid six-month renewals continue.

OM7. Disapproval notice

A special Lok Sabha sitting can be requisitioned by at least:

A. one-third members B. one-half members C. one-tenth members D. 50 members regardless of strength

Answer: C.

It must be held within 14 days.

OM8. Ground distinction

Which statement is correct?

A. Armed rebellion triggers Article 356 only. B. Financial Emergency affects Article 19. C. Article 355 no longer uses internal disturbance. D. Article 358 applies only to war/external aggression Emergency.

Answer: D.

Article 358 does not operate for armed rebellion.

OM9. Executive effect

During National Emergency, Union executive power may:

A. direct States on exercise of executive power B. abolish State List C. dismiss every State ministry automatically D. take over High Courts

Answer: A.

States continue, but Union directions expand.

OM10. State-list law

Parliamentary State-list law under Emergency ordinarily ceases:

A. after one year B. six months after Emergency ends C. only if State repeals D. immediately

Answer: B.

Completed acts remain protected.

OM11. Article 354

It permits:

A. dissolution of Rajya Sabha B. suspension of Article 21 C. temporary modification of constitutional revenue distribution D. creation of Financial Emergency

Answer: C.

The order is temporally bounded and laid before Parliament.

OM12. Term extension

Lok Sabha/Assembly term extension during Emergency:

A. can be five years at once B. is automatic C. continues forever D. may be one year at a time and not beyond six months after cessation

Answer: D.

Parliament must legislate the extension.

OM13. Article 358

Which is correct?

A. It automatically concerns Article 19. B. It needs a presidential order. C. It suspends all Fundamental Rights. D. It operates in Article 356.

Answer: A.

Post-44th it is external-Emergency and nexus-limited.

OM14. Article 359

It principally permits the President to:

A. abolish High Courts B. suspend court enforcement of specified rights except 20/21 C. suspend the Constitution D. suspend Article 19 automatically

Answer: B.

The rights are not textually erased; enforcement is suspended as ordered.

OM15. Non-suspendable rights

Which pair is protected from Article 359 suspension?

A. 14 and 19 B. 19 and 22 C. 20 and 21 D. 21 and 32

Answer: C.

This was added by the 44th Amendment.

OM16. ADM Jabalpur

Current law treats it as:

A. partly controlling B. restored by 44th Amendment C. binding for habeas corpus D. wrongly decided and overruled by Puttaswamy

Answer: D.

Justice Khanna's dissent became constitutionally vindicated.

OM17. Historical declarations

National Emergency has been proclaimed:

A. three times B. once C. five times D. never

Answer: A.

1962, 1971 and 1975.

OM18. Article 356 trigger

President's Rule may be based on:

A. only Supreme Court advice B. Governor report or otherwise C. only ECI certificate D. Lok Sabha no-confidence

Answer: B.

The constitutional test is inability to carry on State government according to Constitution.

OM19. 356 approval

Both Houses approve within:

A. six months simple majority B. one month special majority C. two months simple majority D. two months special majority

Answer: C.

Each continuation is six months.

OM20. 356 maximum

Ordinary constitutional maximum is:

A. five years B. indefinite C. one year D. three years

Answer: D.

Beyond one year requires Emergency plus ECI certification.

OM21. Beyond one year

Extension requires:

A. National Emergency condition plus ECI certification B. Supreme Court permission C. State referendum D. Governor request alone

Answer: A.

Both constitutional conditions must be met.

OM22. Bommai floor test

Disputed majority should ordinarily be tested:

A. by ECI B. on Assembly floor C. in Rajya Sabha D. by Governor interview

Answer: B.

Raj Bhavan assessment is not a substitute.

OM23. Assembly dissolution

Bommai requires:

A. State consent B. no suspension C. no dissolution before parliamentary approval D. immediate dissolution

Answer: C.

Courts can restore an improperly dismissed government/Assembly.

OM24. Article 356 and rights

Which is correct?

A. Article 21 is suspended. B. Article 19 automatically suspends. C. Article 359 always applies. D. President's Rule has no direct Fundamental Rights suspension.

Answer: D.

Do not merge Articles 352 and 356.

OM25. Financial trigger

Article 360 concerns threat to:

A. financial stability or credit of India or part B. municipal finances only C. national security only D. State majority

Answer: A.

The trigger is broad but financial.

OM26. Financial duration

Once approved, it:

A. ends in one year B. continues indefinitely without renewal C. needs six-month special-majority renewal D. requires State ratification

Answer: B.

It may be revoked by the President.

OM27. Financial consequences

Which may be directed?

A. abolition of Finance Commission B. Suspension of Article 19 C. salary reductions including SC/HC judges D. Dissolution of High Courts

Answer: C.

State Money Bills can also be required to be reserved.

OM28. Financial status

As of the control date, Financial Emergency has:

A. been used during COVID-19 B. been proclaimed once C. been used in 1991 D. never been proclaimed

Answer: D.

Economic crisis does not equal Article 360 proclamation.

Remedial MCQ loop - strict C -> C -> A -> D rotation

RM1. Ground

The internal ground under Article 352 is:

A. armed rebellion B. internal disturbance C. public disorder D. State failure

Answer: A.

Internal disturbance remains in Article 355, not Article 352.

RM2. Majority

Article 356 approval uses:

A. special majority B. simple majority C. joint sitting D. State ratification

Answer: B.

Only National Emergency uses the special majority among the three.

RM3. Rights

Article 358 operates during:

A. Financial Emergency B. armed rebellion only C. war/external aggression Emergency D. President's Rule

Answer: C.

It automatically affects Article 19 subject to post-44th limits.

RM4. Liberty

Which can never be suspended through Article 359?

A. 32/226 B. 14/15 C. 19/22 D. 20/21

Answer: D.

Life, liberty and penal protections remain enforceable.

RM5. Bommai

The correct majority forum is:

A. Assembly floor B. Governor's office C. Supreme Court facts hearing first D. Rajya Sabha

Answer: A.

Floor test is the default democratic mechanism.

RM6. High Court

During President's Rule:

A. High Court is dissolved B. High Court remains constitutionally untouched by assumption C. Chief Justice reports to Parliament D. President assumes High Court functions

Answer: B.

Article 356 expressly protects High Court functions.

RM7. Article 360

Its parliamentary approval window is:

A. six months B. one month C. two months D. one year

Answer: C.

Simple majority in both Houses.

RM8. Article 360 use

India has:

A. used it in 1962 B. used it in 1991 C. used it in 1975 D. never proclaimed it

Answer: D.

The severity helps explain its non-use.

PYQS AND ANSWER PRACTICE

Routed PYQs with model solutions

PYQ 1 - UPSC GS-II 2018, Q3 - direct

Question: Under what circumstances can the Financial Emergency be proclaimed by the President of India? What consequences follow when such a declaration remains in force? **10 marks | 150 words**

Model solution

Article 360 permits the President to proclaim Financial Emergency when satisfied that the financial stability or credit of India or any part is threatened.

Both Houses must approve within two months by simple majority. Once approved, the proclamation continues indefinitely without six-month renewal and may be revoked by the President.

Its consequences are strongly centralising. Union executive power extends to directing States to observe canons of financial propriety and other necessary measures. Directions may require reduction of salaries and allowances of persons serving a State and reservation of State Money Bills or specified financial Bills for presidential consideration. The President may also direct salary reductions for persons serving Union affairs, including Supreme Court and High Court judges.

The provision makes the financial federation temporarily unitary without suspending Fundamental Rights or State institutions as such. It has never been invoked, including during the 1991 crisis, reflecting its severity.

Thus, Article 360 is a last-resort stabilisation power whose constitutional legitimacy depends on necessity, proportionality and review.

PYQ 2 - UPSC Prelims 2018, Q53 - direct

Question: If the President of India exercises power under Article 356 in respect of a particular State, then:

A. The State Assembly is automatically dissolved. B. The powers of the State Legislature shall be exercisable by or under the authority of Parliament. C. Article 19 is suspended in that State. D. The President can personally make every law relating to that State without parliamentary authority.

Answer: B. INFERRED ANSWER - NOT OFFICIALLY VERIFIED.

Article 356 permits declaration that State legislative powers are exercisable by or under Parliament's authority. The Assembly may be suspended rather than automatically dissolved, and Fundamental Rights are not automatically affected.

PYQ 3 - UPSC GS-II 2020, Q11 - supporting/cross-owned

Question: The Indian Constitution exhibits centralising tendencies to maintain unity and integrity of the nation. Elucidate in the perspective of the Epidemic Diseases Act, 1897, the Disaster Management Act, 2005 and the recently passed Farm Acts. **15 marks | 250 words**

Model solution

India's holding-together Constitution gives the Union crisis and common-market capacity beyond a classical federation.

During COVID-19, the Union used the Disaster Management Act, 2005 for national directions, while the Epidemic Diseases Act operated through State authorities. Central coordination enabled uniform movement, procurement and containment rules, but public health is substantially a State field and implementation burdens rested on States.

The 2020 Farm Acts relied on Concurrent Entry 33 concerning trade in foodstuffs but affected agriculture and markets under State Entries 14 and 28. Their enactment without adequate federal consultation became a competence and trust dispute. Repeal in 2021 demonstrated political federalism.

Emergency provisions strengthen this tendency: Article 352 permits Union directions and State-field legislation; Article 356 transfers State legislative authority; Article 360 centralises financial directions. Yet these were not the direct legal

basis of the Farm Acts.

The counterbalance lies in *S.R. Bommai*, judicial competence doctrines, parliamentary accountability, GST/ISC consultation and State electoral power.

Thus, centralising authority may protect unity, but ordinary statutes should not borrow emergency logic. Necessity, correct List entry and structured State consultation distinguish coordination from coercion.

PYQ 4 - UPSC Prelims 2023, Q77 - direct

Question: Consider the following statements:

1. According to the Constitution, the Central Government has a duty to protect States from internal disturbances.
2. The Constitution exempts the States from providing legal counsel to a person being held for preventive detention.
3. According to the Prevention of Terrorism Act, 2002, confession of an accused before police cannot be used as evidence.

How many statements are correct?

A. Only one B. Only two C. All three D. None

Answer: B. INFERRED ANSWER - NOT OFFICIALLY VERIFIED.

Article 355 establishes the Union duty. Article 22(3) excludes preventive-detention cases from clauses (1) and (2), including counsel/arrest-production safeguards. POTA allowed specified police confessions as evidence; it was repealed in 2004.

PYQ 5 - UPSC GS-II 2023, Q13 - direct

Question: Account for the legal and political factors responsible for the reduced frequency of using Article 356 by the Union Governments since the mid-1990s. **15 marks | 250 words**

Model solution

Article 356 declined after the mid-1990s because judicial doctrine and political federalisation raised the cost of partisan dismissal.

Legal watershed: *S.R. Bommai* (1994) made proclamations judicially reviewable, required relevant material, placed majority testing on the Assembly floor, prevented dissolution before parliamentary approval and allowed restoration after invalid action. *Rameshwar Prasad* (2006) reinforced review by finding the Bihar dissolution unconstitutional.

Political change: Coalition Union governments after 1989 often depended on regional parties. Strong State-based parties increased parliamentary and electoral costs of dismissing opposition governments. Greater media and civil-society scrutiny also raised reputational cost.

Institutional norms: Sarkaria and Punchhi recommended warning, floor tests, speaking Governor reports and last-resort use. Although not binding, they shaped constitutional expectations.

The decline is not attributable to textual repeal: Article 356 retains broad “report or otherwise” language and Governor disputes continue. Rather, law altered litigation risk while political federalism altered survival incentives.

Thus, Article 356 moved from a routine partisan instrument toward an exceptional constitutional remedy through the combined discipline of courts, coalitions and conventions.

PYQ 6 - UPSC Prelims 2024, Q74 - supporting, official key

Question: Which of the following statements about the Constitution are correct?

1. Powers of Municipalities are given in Part IX-A.
2. Emergency provisions are given in Part XVIII.
3. Constitutional amendment provisions are given in Part XX.

Select the correct answer:

A. 1 and 2 only B. 2 and 3 only C. 1 only D. 1, 2 and 3

Answer: D. OFFICIAL UPSC SET-A KEY.

All three Part references are correct.

Original Mains practice with examiner-grade models

M1. 10 marks | 150 words

Question: Explain the written-Cabinet, parliamentary and Lok Sabha safeguards governing a National Emergency.

Model solution

Article 352 now combines executive initiation with strong parliamentary checks.

First, the President cannot proclaim Emergency unless the Union Cabinet's decision is communicated in writing. This prevents prime-ministerial or informal advice from substituting for collective Cabinet responsibility.

Second, both Houses must approve within one month through a special majority: majority of total membership and at least two-thirds present and voting. Continuation requires the same majority every six months, preventing an open-ended executive proclamation.

Third, Lok Sabha possesses a special exit mechanism. The President must revoke if the House passes a simple-majority disapproval resolution. At least one-tenth of Lok Sabha members may requisition a special sitting within 14 days.

Finally, presidential satisfaction is judicially reviewable after removal of the 38th Amendment immunity.

These 44th Amendment safeguards respond directly to 1975. They preserve rapid crisis action but require written collective advice, recurring legislative legitimacy, lower-House control and constitutional review.

M2. 10 marks | 150 words

Question: Differentiate Articles 358 and 359 and explain the significance of the protection of Articles 20 and 21.

Model solution

Articles 358 and 359 affect Fundamental Rights differently during National Emergency.

Article 358 operates automatically and concerns only Article 19. After the 44th Amendment, it applies only to Emergency based on war or external aggression, not armed rebellion, and protects only emergency-related laws carrying the required recital and action under them.

Article 359 requires a presidential order. It suspends the right to move specified courts for enforcement of named Fundamental Rights for the stated period and territory; it does not automatically suspend every right.

Articles 20 and 21 are constitutionally excluded from Article 359. Protection against retrospective punishment, double jeopardy and compelled self-incrimination, along with life and personal liberty, remain enforceable.

This protection answers the constitutional failure exposed by *ADM Jabalpur*, whose majority denied habeas corpus during the 1975 Emergency. *Puttaswamy* later overruled that decision.

Thus, Article 358 creates a narrow automatic Article 19 rule; Article 359 creates a specified enforcement restriction, bounded by an inviolable liberty core.

M3. 15 marks | 250 words

Question: "Emergency provisions make the Indian federation unitary without formally abolishing States." Examine.

Model solution

The statement captures the temporary centralisation enabled by Part XVIII, but each emergency changes federalism differently.

Under Article 352, Union executive directions extend broadly, Parliament legislates on the State List and Article 354 can modify revenue distribution. State legislatures and governments nevertheless continue; Union competence becomes temporarily dominant rather than States being abolished.

Under Article 356, centralisation is sharper within the affected State. The Council of Ministers is dismissed and State legislative power becomes exercisable by or under Parliament. Yet the High Court remains untouched, parliamentary approval is required and the State's legal identity continues.

Article 360 centralises financial direction: the Union may prescribe financial propriety, salary reductions and reservation of State financial Bills. It does not itself dismiss State institutions.

Post-1978 safeguards qualify the unitary transformation. National Emergency requires written Cabinet advice, special-majority renewal and Lok Sabha disapproval control. Articles 20 and 21 remain enforceable. *S.R. Bommai* makes Article 356 reviewable, prioritises floor tests and permits restoration.

Therefore, Emergency creates temporary functional unitarism within a continuing federal Constitution. The provisions are legitimate as a safety-valve only where necessity, parliamentary control, rights protection and judicial review prevent exceptional power from becoming ordinary governance.

M4. 15 marks | 250 words

Question: Assess the constitutional significance of *S.R. Bommai* beyond merely reducing misuse of Article 356.

Model solution

S.R. Bommai transformed Article 356 and clarified the nature of Indian constitutional democracy.

First, it subjected presidential satisfaction to judicial review. Relevant material, absence of mala fides and constitutional purpose became legal requirements, rejecting the view that Article 356 was purely political.

Second, it constitutionalised the floor test as the ordinary method for deciding legislative majority. This protects the Assembly's democratic authority from subjective Governor assessment.

Third, it limited irreversible action: the Assembly should not be dissolved before Parliament approves the proclamation, and courts may restore an unlawfully dismissed government and House.

Fourth, the Court identified federalism and secularism as Basic Structure features. Article 356 can therefore protect the constitutional order against genuinely anti-secular State action, but cannot become a partisan weapon against opposition governments.

Fifth, the burden placed on the Union to produce supporting material strengthened reason-giving and accountability. The judgment's reach extends beyond frequency statistics. It links federalism, representative majority, judicial review, secularism and remedial restoration. Later cases such as *Rameshwar Prasad* demonstrate continued scrutiny of Governor-based material.

Thus, *Bommai* did not merely tame a provision; it converted emergency federalism into a justiciable branch of constitutional morality.

M5. 20 marks | 250-300 words

Question: Critically evaluate whether the 44th Amendment adequately prevents repetition of the constitutional abuses associated with the 1975 Emergency.

Model solution

The 44th Amendment directly repaired major vulnerabilities exposed in 1975.

It replaced "internal disturbance" with the narrower "armed rebellion," required written Cabinet advice, reduced the approval period to one month and imposed a special majority. Six-month renewal prevents passive continuation. Lok Sabha disapproval forces revocation, while one-tenth of members can requisition a special sitting.

Rights protection was equally important. Article 358 was confined to external Emergency and emergency-related laws. Article 359 can never block enforcement of Articles 20 and 21. The amendment removed the 38th Amendment's satisfaction immunity, restoring judicial review. *Puttaswamy's* overruling of *ADM Jabalpur* supplies jurisprudential reinforcement.

However, no text eliminates abuse. A disciplined parliamentary majority may approve executive action; threat information remains controlled by government; preventive detention and censorship can operate through ordinary statutes; institutions may defer during perceived crisis. National Emergency can still be renewed indefinitely.

Prevention therefore also depends on opposition capacity, free media, independent courts, reasoned Cabinet material and political memory. Official commemoration of Emergency abuse may strengthen memory but is not a legal safeguard.

The 44th Amendment substantially closes the exact 1975 pathways, especially vague grounds and denial of life/liberty remedies. It cannot guarantee democratic courage. Its adequacy is institutional rather than automatic: strong text must be activated by Parliament, courts and citizens.

M6. 20 marks | 250-300 words

Question: Why has Article 360 never been invoked despite serious economic crises? Does non-use indicate redundancy?

Model solution

Article 360 permits Financial Emergency when India's financial stability or credit, or that of any part, is threatened. Its non-use reflects severity and availability of alternatives, not necessarily redundancy.

Once approved by simple majority within two months, it continues indefinitely. Union directions may prescribe financial propriety, reduce salaries of State and Union personnel including constitutional-court judges, and require State Money Bills to be reserved. Such measures deeply centralise fiscal federalism and can undermine judicial and administrative independence perceptions.

India managed the 1991 balance-of-payments crisis through devaluation, external assistance, fiscal adjustment and economic reform; later shocks used monetary, fiscal, disaster and borrowing instruments. Article 293 conditions, Finance Commission transfers, RBI action and Union budgets provide less constitutionally dramatic tools.

Political economy also discourages invocation. The proclamation publicly signals exceptional loss of financial credibility and distributes austerity through direct central command. Judicial review and parliamentary debate add accountability.

Non-use therefore demonstrates a high activation threshold and preference for ordinary institutions. Yet the provision retains contingency value where systemic collapse prevents normal fiscal coordination.

Reform could require published reasons, periodic parliamentary renewal rather than indefinite continuation, an independent fiscal assessment and protection for judicial remuneration.

Article 360 is a constitutional fire alarm: rarely or never used because activation itself signals catastrophe. Its legitimacy lies in last-resort availability, but its indefinite duration deserves scrutiny.

M7. 20 marks | 250-300 words

Question: Emergency powers are necessary for constitutional survival but dangerous when crisis reasoning enters ordinary governance. Discuss.

Model solution

A Constitution must respond to war, rebellion, State breakdown and financial collapse. Ordinary allocation may be too slow or fragmented; Emergency provisions therefore concentrate authority to preserve sovereignty and constitutional government.

Necessity is evident in Article 352's defence coordination, Article 356's response to genuine constitutional impossibility and Article 360's potential stabilisation of systemic finance. Alladi Krishnaswami Ayyar's "life-breath" and Mahabir Tyagi's "safety-valve" capture this case.

The danger is normalisation. The 1975 Emergency showed how vague "internal disturbance," executive dominance, detention and blocked judicial remedies could turn legal power into constitutional dictatorship. Similar reasoning can enter ordinary governance when disaster statutes, preventive detention or central directions bypass consultation.

India's safeguards now distinguish exception from normality: armed rebellion is narrow; Cabinet advice must be written; Article 352 needs special-majority renewal; Lok Sabha can force revocation; Articles 20 and 21 remain enforceable; *Bommai* and *Puttaswamy* reject executive finality.

Yet institutions must actively enforce these rules. Parliament requires information, courts must remain accessible, media must remain free and emergency-related laws must show genuine nexus and proportionality.

Emergency power is therefore legitimate only as temporary constitutional self-defence. The decisive test is whether exceptional authority restores ordinary democratic government or becomes a convenient model for governing without it.